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Case Number: 25NNCV07934 Hearing Date: July 17, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Quash, or in the Alternative, to Limit

Deposition Subpoenas for Production of Business Records (Medical Records)

Hearing Date: 07/17/26

CASE NO./NAME: 25NNCV07934 / Shu Yun He v. Thomas G. Harris,
M.D.

Moving Party: Plaintiff

Shu Yun He

Responding Party: Defendant Thomas G. Harris, M.D.

Notice: insufficient, unsigned

Ruling: GRANT

IN PART, DENY IN PART

NOTICE

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the

hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is a medical negligence case. On or about June 14, 2022, Plaintiff Shu Yun He ("Plaintiff") had an initial consultation with Defendant Thomas G. Harris ("Defendant") for a mild posterior tibial tendon tear with scar tissue in her right ankle and subtalar joint. (FAC, ¶ 4.) Defendant agreed to perform a limited, joint-preserving procedure consisting of posterior tibial tendon repair via arthroscopy and removal of scar tissue of ankle joint and subtalar joint via arthroscopy. (Id. at ¶ 8.) After the consultation, Defendant informed Plaintiff that the surgical plan was changed to include fusion and osteotomy, which Plaintiff rejected. (Id. at ¶¶ 9, 11.) On August 9, 2022, Defendant suggested fusion might be required and Plaintiff again rejected. (Id. at ¶¶ 12, 13.) Plaintiff alleges that Defendant failed to disclose material risks such as removal of relatively healthy cartilage, joint destruction, nerve injury, and deviation from a joint-preserving procedure. (Id. at ¶ 14.) Immediately before surgery, Plaintiff requested preservation of cartilage, which Defendant did not respond to. (Id. at ¶ 15.)

On August 10, 2022, Defendant performed the surgery. (Id. at ¶ 16.) Immediately upon waking, Plaintiff alleges experiencing and reporting extreme and abnormal pain, stabbing sensations, and numbness in the lateral subtalar region. (Id. at ¶ 17.) Defendant represented that the cartilage of the ankle joint was healthy, that the lateral side of the subtalar joint had minimal arthritis, the left side of the subtalar joint had a mild coalition, and pains were normal. (Id. at ¶ 19.) Plaintiff relied on Defendant's representations. (Id. at ¶ 21.) Plaintiff observed large open incisions inconsistent with standard arthroscopy. (Id. at ¶ 25.) On or about September 6, 2024, Plaintiff was diagnosed by Dr. Bradley Lamm ("Lamm") with end-stage arthritis of ankle joint and subtalar joint and informed that her sural nerve had been irreparably damaged. (Id. at ¶ 30.) Lamm advised no surgical option exists to restore the joints and nerve. (Id. at ¶ 31.) On November 18, 2024, Plaintiff first suspected wrongdoing when Dr. William Adams performed imaging which revealed previously

preserved cartilage, multiple regions of cartilage had been removed, and rapid structural collapse. (Id. at ¶¶ 32-35.) On October 1, 2025, Dr. Jeffery McAlister confirmed severe arthritis of the ankle joint and subtalar joint, extensive joint destruction, and irreparable joint damage. (Id. at ¶¶ 37-38.) On October 30, 2025, Dr. Eman Elmi concluded Plaintiff is permanently disabled. (Id. at ¶ 41.) Plaintiff alleges the conditions were not present before surgery. (Id. at ¶ 44.)

On November 7, 2025, Plaintiff filed a Complaint. On April 13, 2026, Plaintiff filed a First Amended Complaint ("FAC") alleging (1) medical negligence and (2) lack of informed consent.

On May 6, 2026, Plaintiff filed the Motion to Quash. On May 27, 2026, Plaintiff filed an Amended Notice and Motion to Quash or Limit Deposition Subpoenas for Production of Business Records (Medical Records) ("Motion").

On July 2, 2026, Defendant filed an opposition.

No reply has been filed.

LEGAL STANDARD

Civil Code of Procedure section 1987.1 states that "[i]f a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." § (Code Civ. Proc., § 1987.1, subd. (a)). § "In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." § (Ibid.). § Subdivision (b) provides that a party may make a motion pursuant to subdivision (a). § (Id. at § 1987.1, subd. (b)). §

As a general rule, all unprivileged information that is relevant to the subject matter of the action is discoverable if it would itself be admissible evidence at trial or if it appears reasonably calculated to lead to the discovery of admissible evidence. (Code Civ. Proc., § 2017.010; Schnabel v. Superior Court (1993) 5 Cal.4th 704, 711.) When the information sought to be discovered impacts a person's constitutional right to privacy, limited protections come into play for that person. (Shaffer v. Superior Court (1995) 33 Cal.App.4th 993, 999.) The protections cover both a person's personal and financial matters. (Ibid.) The court must balance competing rights — the right of a litigant to discover relevant facts and the right of an individual to maintain reasonable privacy — in determining whether the information is discoverable. (Ibid.)

For discovery purposes, information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.)

MEET AND CONFER REQUIREMENT

California Code of Civil Procedure section 2025.410(c) provides that a motion to quash a deposition notice must be accompanied by a meet and confer declaration. Similarly, a motion to quash a subpoena for personal records, including medical records, must be accompanied by a declaration showing a "reasonable and good faith attempt at informal resolution of the dispute" between the party requesting the records and the "consumer" or "employee" whose records are involved or counsel for such person. (Code Civ. Proc., §§1985.3, subd. (g), 1985.6, subd. (f)(4).)

Plaintiff's declaration demonstrates an attempt to informally resolve the matter prior to the filing of this Motion. (He Decl., ¶ 4.) However, the parties were unable to resolve the matter. (Id. at ¶ 6.) The Court finds that Plaintiff has satisfied the meet and confer requirement.

DISCUSSION

Plaintiff moves to quash the deposition subpoenas for production of business records directed to Sutter Physicians Services, Palo Alto Medical Foundation, Palo Alto

Medical Foundation X-Rays, Bradley Lamm, D.P.M., Jeffery MacAllister, D.P.M., and Eman Elmi, D.P.M. In the alternative, Plaintiff requests the Court limit the scope of the subpoenas or issue a protective order. Plaintiff requests that the Court limit the subpoenas to records concerning Plaintiff's right ankle, foot, and subtalar joint for the period of August 2021 through November 7, 2025. Additionally, Plaintiff requests withholding or redacting insurance-related information.

Plaintiff

argues that Defendant's subpoenas are overbroad and violate Plaintiff's right to privacy because they seek "any and all" medical records without meaningful limitation. Plaintiff argues that, because privacy rights are implicated, the burden has shifted to Defendant to demonstrate a compelling need and narrow tailoring. Plaintiff contends that Defendant has made no particularized showing of need and proposed no meaningful limitation. Defendant has failed to identify a single specific record, provider, or condition necessary to its defense. Plaintiff contends that Defendant has not explained what it expects to find from records five or ten years ago. If earlier records were not necessary for the surgeon to decide to operate, then they are not necessary to evaluate the decision to operate. Plaintiff contends that seeking records from 10 years ago is a fishing expedition. Plaintiff argues that the subpoenas would invade Plaintiff's privacy by disclosing medical information regarding matters entirely unrelated to the 2022 surgery. Additionally, Plaintiff contends the benefits of allowing the subpoenas are nonexistent, while the burden of intrusion is substantial. Plaintiff also argues that the subpoenas seek information beyond the scope of matters in controversy, which include (1) the condition of Plaintiff's right ankle and related structures immediately prior to the surgery; (2) the surgical procedure itself; and (3) the resulting post-operative complications, including cartilage damage and nerve injury. Since the subpoenas request any and all records, they encompass non-relevant information such as general medicine, urology, women's health and reproductive care, and unrelated treatments. Also, the Plaintiff's claims for pain, disability, emotional distress, and medical expenses do not create a wholesale waiver of privacy. Plaintiff contends the subpoenas are duplicative and include unrelated providers and medical histories.

In

opposition, Defendant argues Plaintiff has placed her medical condition at issue in this litigation by seeking damages for permanent disability, severe pain, loss of mobility, and emotional distress. Defendant argues that Defendant

is entitled to discover whether or not Plaintiff had pre-existing injuries which might negate or mitigate the damages Plaintiff is seeking. Defendant contends that limiting Defendant to only obtain records from one year preceding her treatment is unreasonable. Defendant contends that medical records show Plaintiff was complaining of pain for more than five years before she first sought treatment with Defendant. Defendant argues it is not targeting sensitive personal information but seeking to ascertain the truth and the full picture of Plaintiff's prior medical condition relating to the injuries at issue in this litigation. Defendant contends that the generality of the claims create the possibility that features of her other medical and psychological history will be directly relevant to the determination of emotional distress. The subpoenas are directly relevant, essential to a fair resolution, and no more intrusive than necessary.

While

a plaintiff is not obligated to sacrifice all privacy to seek redress for a specific physical, mental, or emotional injury, "they may not withhold information which relates to any physical or mental condition which they have put in issue by bringing this lawsuit." (Britt v. Superior Court (1978) 20 Cal.3d 844, 864; City & County of San Francisco v. Superior Court (1951) 37 Cal.2d 227, 232.) A plaintiff suing for personal injuries waives the physician-patient privilege to some extent, but this does not make discoverable all of a plaintiff's lifetime medical history. (Britt, supra, 20 Cal.3d at 863-64.)

Here,

Defendant's subpoenas directed to Palo Alto Medical Foundation, Sutter Health, and other providers identified seek "any and all" medical records. The Court agrees that the subpoenas are not limited in scope as to time or the relevant injuries suffered by the Plaintiff in this action. While some of Plaintiff's prior medical history may be relevant to this action to determine if Plaintiff suffered from preexisting conditions, issues, or pain in certain body parts prior to the subject incident, discovery of the entirety of Plaintiff's medical records, including billing and insurance information, is unreasonably broad in scope. Thus, the Court will limit the scope of the subpoenas to records related to Plaintiff's right ankle, foot, subtalar joint, posterior tibial tendon, sural nerve, and related conditions, as requested by Plaintiff.

Additionally,

the Court agrees the time scope of the subpoenas should be limited. The subject surgery occurred on August 10, 2022. (FAC, ¶ 16.) Plaintiff suggests the subpoenas should be limited to a period of time beginning in August 2021. The Court does not agree with Plaintiff that medical records prior to August 2021 are unlikely to lead to the discovery of admissible evidence. As such, the Court denies the time limitation suggested by Plaintiff beginning in August 2021. Balancing the intrusion into Plaintiff's medical records as a whole against the need for discovery, the Court will limit the subpoenas in scope of time to 5 years prior to the injury to the present.

Accordingly, the motion is granted in part and denied in part.

CONCLUSION AND ORDER

Plaintiff's Motion to Quash, or in the Alternative, to Limit Deposition Subpoenas for Production of Business Records (Medical Records) is granted in part and denied in part. The motion is denied in part to the extent that Plaintiff sought to quash the subpoenas in their entirety and as to Plaintiff's suggested time limitation on the subpoenas. The Motion is granted in part such that the Court will limit the subpoenas scope of time to 5 years prior to the subject surgery and to records relating to Plaintiff's right ankle, foot, subtalar joint, posterior tibial tendon, sural nerve, and related conditions.

MOVING PARTY is to give notice.

Hon. Victor Avila

Judge of the Superior Court